

**IN THE UNITED STATES FEDERAL DISTRICT COURT
FOR THE MIDDLE DISTRICT OF FLORIDA**

Tampa Division

DAVIS, MATTHEW AARON

Plaintiff,

v.

NOCCO, CHRIS, in his official
capacity as Sheriff of Pasco County,
Florida,

Defendant.

Civil Action No.: _____

JURY TRIAL DEMANDED

42 U.S.C. § 1983

COMPLAINT FOR VIOLATION OF CIVIL RIGHTS

**PURSUANT TO 42 U.S.C. § 1983 — MUNICIPAL LIABILITY UNDER
MONELL**

Fourth and Fourteenth Amendments • First Amendment

Warrantless Child Removal • Defiance of Court-Ordered Visitation • Continued

Use of ILP/Prolific Offender Targeting

I. PRELIMINARY STATEMENT / INTRODUCTION

1. This is a civil action complaint for violation of civil rights brought by Plaintiff, Matthew Aaron Davis (12403), against Defendant, Chris Nocco, in his official capacity as Sheriff of Pasco County, Florida, in pursuit of 42 U.S.C § 1983. Arising from the warrantless removal of Plaintiff's minor children from his physical custody. Followed by retaliation, enforced separation against court order and refusal of public records by the Pasco

County Sheriff's Office's (PCSO) with the retaliatory conduct carried out under official PCSO policy and practices that deprived Plaintiff of his fundamental rights and liberties as a parent, and a citizen of the United States of America.

II. JURISDICTION AND VENUE

2. This Court has original federal question jurisdiction under 28 U.S.C. §§ 1331 and 1343(a)(3)(4). Plaintiff's claims arise under 42 U.S.C. § 1983 and the *First, Fourth, and Fourteenth Amendments* to the United States Constitution.
3. Venue is proper in the Middle District of Florida, Tampa Division, under 28 U.S.C. § 1391(b) as the events giving rise to Plaintiff's claims occurred in Pasco County, Florida.

III. PARTIES

4. Plaintiff, Matthew Aaron Davis (12403), is a citizen of the United States and a resident of Zephyrhills, Pasco County, Florida. He currently resides at General Delivery, Zephyrhills, Florida 33542.
5. Defendant, Chris Nocco, is the duly elected Sheriff of Pasco County, Florida, and at all relevant times was the final policymaking authority for PCSO. Main office located at 8700 Citizens Drive New Port Richey, Florida 34654.

6. Defendant is sued in his official capacity only. An official capacity suit against the Sheriff is, in effect, a suit against the office he leads. *Kentucky v. Graham*, 473 U.S. 159 (1985). The Pasco County Sheriff's Office is not separately named because Florida law does not recognize it as a sue-able entity distinct from the Sheriff. See *Dean v. Barber*, 951 F.2d 1210, 1214 (11th Cir. 1992).

IV. FACTUAL ALLEGATIONS

7. In January 2019, following the birth of Plaintiffs daughter B.R.D. in December 2018, (case number 51-2019DP000024NC in the Sixth Judicial Circuit Court of Florida in Pasco County) the Honorable Judge Babb entered a lawful order granting Plaintiff unrestricted, unsupervised, overnight visitation with his daughter. Although no reunification due to financial instability, Plaintiff already raising his other two children T.M.D. and J.D.D., within his family home with the inability to gain maternity leave. The order was not stayed, not appealed, and not vacated. It was the last lawfully entered, legally effective judicial order in the case.
8. Plaintiff's daughter resides with her maternal great grandparents, Thurla Janellie McCredie Hills Eckerd and Richard Eckerd.

9. Plaintiff was born and raised in upstate New York. Prior to year 2021, Plaintiff was a taxpaying, blue collar father and sole financial supporter of his family of five. Four of which lived in the same household.
10. On February 10, 2020 Plaintiff was hired by the Pasco County Board of County Commissioners (BOCC) employee number 12403. Employed as an Equipment Operator I within the Pasco County Public Works Department which is owned by the BOCC, not the legal entity of Pasco County. Plaintiff was promoted to a non-entry level position of Equipment Operator II on March 13, 2020 before being placed on inactive status on May 29, 2020 and continues to be awaiting a hearing regarding his termination.
11. Between March 2020 to April 2020 while at work Plaintiff received a phone call from his former next door neighbor in regards to witnessing a person break Plaintiffs bathroom window and climb threw. Plaintiff, using his smart phone, accessed his home security footage and witnessed two unidentified men enter his home. Plaintiff called the Pasco County Sheriff and reported a possible burglary. The Pasco County Sheriff responded with overwhelming force and response. After arriving home Plaintiff was informed of the mother of his children, Christina Renee Hills, having lost her house keys and having an affair with a State Attorney Investigator Assistant Michael Adam Cowell. The son of Pasco County Sheriff Lead Detective Michael Adam

Toczyłowski (1865) and step son of Bridget Cowell, State Attorney

Investigator. No arrest was made.

12. The Pasco County Board of County Commissioners (BOCC) is a legally distinct entity separate from Pasco County and serves a dual role it acts as the direct employer and operator of county departments under its ownership including Public Works and it serves as the designated budgetary authority for all Pasco County funded operations, including constitutional officers, pursuant to *Florida Statute §30.49*. The Pasco County Sheriff's Office (PCSO) and Sheriff Chris Nocco are constitutional officers under Article VIII, §1(d) of the Florida Constitution, operating independently of the BOCC with respect to law enforcement policy and personnel however, the PCSO's annual operating budget, including funding for the Intelligence-Led Policing/Prolific Offender Program at issue in this action, is appropriated by the BOCC. Accordingly, while the BOCC does not direct or control PCSO's law enforcement operations, it exercises fiscal authority over those operations and bears constructive notice of the constitutional violations those funded programs produce.

13. In respect to the Sixth Judicial Circuit Court of Florida within Pasco County, Dade City, Florida the BOCC under *Fla. Stat. § 29.008*, counties are statutorily required to fund and maintain the physical facilities used by the

state courts system, the building, utilities, maintenance, security infrastructure, communications, and existing equipment. The county owns the building and bears the cost of housing the court. So the Pasco County courthouse in Dade City, Florida as a physical structure is a county funded, county maintained facility, and the BOCC is the body that appropriates that money and holds title. The BOCC has no authority over the judicial operations of the Sixth Judicial Circuit Court of Florida in Pasco County but is responsible for the environment in which it is housed.

14. On December 9, 2020 at 4:41pm, PCSO deputies arrested Plaintiff, while still a BOCC employee on inactive status, for battery with no injury only allegations under *Fla. Stat. § 784.03* at his family's former home located at 6819 23rd St. Zephyrhills, Florida 33542 (Court Case No. 51-2020MM004755MMAXES in the Sixth Judicial Circuit Court of Florida). The arrest arose from an incident involving the mother of his children, Christina Renee Hills, in common.
15. Before the time of arrest Plaintiff's children T.M.D. and J.D.D. were picked up by their maternal great grandparents to visit and stay the night.
16. On December 10, 2020 before sunrise, Plaintiff was booked into Pasco County Corrections. A department that was owned and budgeted at that time by his employer the Pasco County BOCC.

17. On December 12, 2020 Plaintiff's family member posted bond in the amount of \$50 and he was released from incarceration on bond for the pending charges against him.
18. When going to retrieve his children T.M.D. and J.D.D. at their maternal great grandparents home. PCSO was dispatched and successfully blocked and refused Plaintiff access to return his children back to their family home in his physical custody. Plaintiff at that time had full custody and parental rights as per court order by the Honorable Judge Linda Babb in the Sixth Judicial Circuit Court of Florida in Pasco County case number 2019DP000075DPAXES.
19. The removal and placement was carried out without a court order, a warrant, any individualized, child specific determination that any of the children faced immediate danger of abuse, abandonment, or neglect required by the *Fourth* and *Fourteenth Amendments* and by *Fla. Stat. § 39.401* to bypass prior judicial authorization. Only accusations by a twenty-three year old Child Protective Investigator Courtney Beason.
20. On February 11, 2021, the State Attorney filed a "No Information" in case number 51-2020MM004755MMAXES in the Sixth Judicial Circuit Court of Florida in Pasco County and declined to prosecute. It was Plaintiff's first

arrest in a continued series, and it produced no conviction. Plaintiff has never been prosecuted for criminal charges in Florida at that time.

21. When the battery charge was dismissed on February 11, 2021, the legal predicate for the removal was extinguished. The children were not returned yet held and blocked Plaintiff from all his children enforced by PCSO.
22. On March 1, 2021 initial Child Dependency hearing in case number 51-2020DR005966DRAXES in the Sixth Judicial Circuit Court of Florida in Pasco County under the Honorable Judge Sestek took place. Exactly eighty-one days since the children T.M.D. and J.D.D. were physically removed by PCSO from their family home with their biological parents.
23. Plaintiff questioned the grounds for the domestic relations hearing as the charges of domestic battery were dropped and why his children had been removed. Plaintiff was then threatened with contempt of court for bringing up this violation of his federally protected right to care, custody and control of all his children and the separation.
24. At that time Plaintiff submitted completed conditions, yet to be imposed on him, that he paid for out of pocket. To including a sixteen hour parenting class certificate, a four hour divorce based parenting class, and a four hour anger management class certificate. That he completed pre initial hearing and post physical removal of the children. Certificates are directly from the

Department of Children and Families (DCF) website and advertised as “nationally court approved”. The court refused to recognize these certificates and Plaintiff was forced to sign a parenting plan with the Honorable Judge Sestek verbally directing him to “Do it again through Pasco County.”

25. On March 9, 2021 Plaintiff was arrested at his family home located at 6819 23rd St. Zephyrhills Florida 33542. On charges of one count second degree felony of burglary, one count second degree felony of dealing in stolen property, and one count second degree felony false verification of ownership in case number 51-2021CF001143CFAXES in the Sixth Judicial Circuit Court of Florida in Pasco County. Without warrant or probable cause not based on hearsay.
26. The formal complaint for this arrest was filed with PCSO on November 22, 2020 from a neighbor, Kastine Tuttle, to whom Plaintiff had done some handyman work for and had moved to Kentucky after she sold her home on February 11, 2021. The same day the Florida State Attorney office dropped the battery charges against Plaintiff.
27. On March 21, 2021 Plaintiffs children's mother, Christina Rene Hills, was also arrested as Plaintiffs co-defendant and charged with the same crime, yet given a separate case number 51-2021CF001328CFAXES in the Sixth

Judicial Circuit Court of Florida in Pasco County. Alternating incarceration periods further separating Plaintiffs family.

28. On March 22, 2021 the very next day. Plaintiff was released on a bond in the amount of \$1,500.00. From that date forward, Plaintiff was the subject of a State Attorney investigation under the Predictive Policing System that ran concurrently with the proceeding affecting his children. He was investigated as a criminal suspect at the same time his rights as a father were being adjudicated, both drawing on PCSO generated information shared through the ILP program's information sharing mechanism for pending charges with no conviction at that time of any criminal acts.
29. In December of 2021 the final hearing for the domestic relations case closed giving the maternal great grandmother, Thurla Janellie McCredie Hills Eckerd, permanent guardianship over all Plaintiffs children. Merging the closed child dependency case for his daughter and the domestic relations case that removed his two sons. Whom at the time were all under the age of nine years old.
30. On or about July 29–30, 2022, while Plaintiff was out on bond attempting to go to trial on his first pending felony criminal charges, over a year later. A shooting occurred at Plaintiff's new verified residence as per arrest affidavit located at 36725 Howard Ave. Dade City, Florida 33525. In which Plaintiff

was shot and wounded by a visitor and required emergency medical airlift to a trauma unit for treatment. Plaintiff was then arrested by PCSO M. A.

Toczykowski (1865) for two counts in the second degree felony of aggravated assault while in the trauma unit. Case No.

51-2022CF003171CFAXES in the Sixth Judicial Circuit Court of Florida in Pasco County.

31. This arrest violated Plaintiffs bond and was made in retaliation by PCSO as stand your ground laws in the State of Florida allow immunity to aggravated assault charges when a resident at their home verbally assaults a non-resident to protect their personal property when threatened *Fla. Stat. § 776.032*.
32. Plaintiff, was held in pretrial detention from July 30, 2022 through April 12, 2023. During that period, while continuing to pursue trial on all five felony charges, Plaintiff lost all worldly possessions from his lifetime, his housing, and was permanently separated from his children, breaking all family ties.
33. On or about April 12, 2023 Plaintiff was coerced into a guilty plea after nine documented court appointed attorneys withdrew due to ethics and refusal by the courts of his right to trial. Convictions are now under post conviction relief rule 3.850 and appeal process.

34. PCSO deputies refused to honor that order and physically prevented Plaintiff from exercising his court-ordered visitation. Video documentation of this refusal is preserved. PCSO, the same agency that removed Plaintiff's children in December 2020 without any court order, declined to honor a previous court order restoring a portion of Plaintiff's access to his daughter B.R.D.
35. The combined effect of the removal, the parallel proceedings, Plaintiff's questionable arrests and incarceration. PCSO's defiance of the visitation order has been the prolonged and continuing loss of Plaintiff's relationship with his children. This deprivation was not the product of any court order terminating Plaintiff's parental rights but intentional destruction of an entire family unit for monetary gains of the state and its subdivisions of county governmental departments threw the *Social Security Act Title IV-E (42 U.S.C. §§ 670–679c)*.
36. The Constitution protects not only against the physical removal of a child but the parent-child relationship itself, the ongoing right of a parent to raise, teach, and transmit faith, values, and cultural identity to his children. *Meyer v. Nebraska*, 262 U.S. 390 (1923); *Pierce v. Soc'y of Sisters*, 268 U.S. 510 (1925); *Wisconsin v. Yoder*, 406 U.S. 205 (1972); *Troxel v. Granville*, 530 U.S. 57 (2000).

37. Plaintiff is a native of New York State, raised as an Italian-American New York culture who holds sincere religious beliefs of his own standards that incorporates many religions and acceptance of diversity. His distinct cultural identity that he had begun to transmit to his children and intended to continue transmitting throughout their upbringing. The *First Amendment's* Free Exercise Clause, incorporated against the States through the *Fourteenth Amendment*, together with the *Fourteenth Amendment's* protection of the parent-child relationship, guaranteed Plaintiff the right to direct that religious and cultural upbringing.

38. Municipal liability under § 1983 requires a constitutional violation, a municipal policy, custom, or failure to train amounting to deliberate indifference and that the policy or custom was the moving force behind the violation. *McDowell v. Brown*, 392 F.3d 1283, 1289 (11th Cir. 2004).

39. Official written policy, the ILP Program. The ILP/Prolific Offender Program is an officially adopted, written PCSO policy. The ILP Manual and Plaintiff's designation letter document the policy and its application to Plaintiff. On December 4, 2024, Defendant admitted in the *Taylor v. Nocco* claimed that the program "resulted in repeated constitutional violations." An official policy satisfies Monell directly, without proof of widespread custom. *Pembaur v. City of Cincinnati*, 475 U.S. 469, 480–81 (1986).

40. De facto custom, warrantless child removal. PCSO maintained a persistent custom of removing children in domestic-battery cases without individualized, child-specific danger assessment, without a court order, and without statutory exigency findings. That custom was the moving force behind the December 10, 2020 removal.

41. Failure to train. Defendant failed to train PCSO deputies on the Fourth and *Fourteenth Amendment* requirements for warrantless child removal, the requirements of *Fla. Stat. § 39.401*, and the obligation to honor lawfully entered court orders. Each failure was a proximate cause of the violations alleged. *City of Canton v. Harris*, 489 U.S. 378, 388–89 (1989).

V. CAUSES OF ACTION

COUNT I

42 U.S.C. § 1983 — *Fourth Amendment*

Unreasonable Seizure — Warrantless Removal of Children (Monell: De Facto Custom and Failure to Train)

42. Plaintiff incorporates by reference the Factual Allegations set forth in paragraphs 6 through 42 as if fully set forth herein. The removal of a child from parental custody is a seizure under the *Fourth Amendment*. The December 28, 2020 removal of Plaintiff's two children was warrantless, without court order, and without the child-specific exigent circumstances

required to bypass judicial authorization, and was therefore unreasonable as to each child. The removal was carried out pursuant to PCSO's de facto custom of automatic removal in misdemeanor simple battery cases, which was the moving force behind the seizure, and PCSO's failure to train. Plaintiff seeks compensatory damages for the deprivation of his own rights.

COUNT II

42 U.S.C. § 1983 — *Fourteenth Amendment*

Substantive Due Process and Right to Family Integrity (Monell)

43. Plaintiff incorporates by reference the Factual Allegations set forth in paragraphs 6 through 42 as if fully set forth herein. The Fourteenth Amendment protects the fundamental liberty interest of a parent in the care, custody, and companionship of his children. *Troxel*, 530 U.S. at 65; *Stanley v. Illinois*, 405 U.S. 645 (1972); *Santosky v. Kramer*, 455 U.S. 745 (1982). PCSO removed Plaintiff's two children without any individualized assessment of danger specific to those children, pursuant to PCSO custom. The continued deprivation of Plaintiff's parental rights after February 11, 2021, when the predicate charge was dismissed and any arguable justification was extinguished, independently violated substantive due process.

COUNT III

42 U.S.C. § 1983 — *First and Fourteenth Amendments*

Deprivation of the Parental Right to Direct Religious and Cultural Upbringing

44. Plaintiff incorporates by reference the Factual Allegations set forth in paragraphs 6 through 42 as if fully set forth herein. The *First Amendment's* Free Exercise Clause, incorporated through the *Fourteenth Amendment*, protects a parent's right to direct the religious upbringing of his children, including the daily transmission of faith and cultural identity. *Meyer*, 262 *U.S. at 399*; *Pierce*, 268 *U.S. at 534–35*; *Yoder*, 406 *U.S. at 232*. Plaintiff was deprived of this right through (a) the warrantless removal that began the separation, and (b) PCSO's refusal to honor Judge Babb's order restoring a portion of his access to his daughter. Plaintiff seeks compensatory damages for his own deprivation and such prospective relief as remains available.

COUNT IV

42 U.S.C. § 1983 — *Fourteenth Amendment*

Deliberate Violation of Court-Ordered Visitation (Judge Babb's Order)

45. Plaintiff incorporates by reference the Factual Allegations set forth in paragraphs 6 through 42 as if fully set forth herein. Judge Babb lawfully entered an order granting Plaintiff unsupervised overnight visitation with his daughter specifically, the order was not stayed, appealed, or vacated. Acting under color of law and pursuant to the institutional culture described above,

PCSO deputies refused to honor the order and physically prevented Plaintiff from exercising his court-ordered visitation. PCSO had no lawful authority to override a valid, unstayed court order. Its refusal deprived Plaintiff of a court-ordered liberty interest without lawful authority, in violation of the *Fourteenth Amendment*. Video documentation is preserved at Exhibit H. Plaintiff seeks compensatory damages and prospective relief requiring PCSO to honor lawfully entered parental-rights orders going forward.

COUNT V

42 U.S.C. § 1983 — *Fourth and Fourteenth Amendments*

ILP/Prolific Offender Program — Official Policy (Monell)

46. Plaintiff incorporates by reference the Factual Allegations set forth in paragraphs 6 through 42 as if fully set forth herein. The ILP/Prolific Offender Program designated Plaintiff on March 22, 2021 and subjected him to multi-agency targeting without individualized probable cause or reasonable suspicion of current criminal activity, using his dismissed arrest as the predicate. The program is an officially adopted written policy of PCSO (Exhibits A and B), satisfying Monell’s official-policy prong directly. *Pembaur*, 475 U.S. at 480–81. Defendant has admitted the program caused repeated constitutional violations (Exhibit I). Plaintiff seeks compensatory damages for the period of ILP targeting.

COUNT VI

42 U.S.C. § 1983 — *First Amendment* - Retaliatory Targeting

47. Plaintiff incorporates by reference the Factual Allegations set forth in paragraphs 6 through 42 as if fully set forth herein. Plaintiff engaged in constitutionally protected activity, including public opposition to a local tax initiative called “Pennies for Pasco” and the exercise of his right to petition. The ILP designation made forty days after his charges were dismissed and twelve days after the ILP program was challenged in federal court was substantially motivated by Plaintiff’s protected activity and subjected him to adverse government action that would deter a person of ordinary firmness. *Mt. Healthy City Sch. Dist. v. Doyle*, 429 U.S. 274 (1977); *Hartman v. Moore*, 547 U.S. 250 (2006). Plaintiff seeks compensatory damages.

COUNT VII

42 U.S.C. § 1983 — *Fourteenth Amendment*

Coordinated Use of Parallel Criminal and Dependency Proceedings (Monell)

48. Plaintiff incorporates by reference the Factual Allegations set forth in paragraphs 6 through 42 as if fully set forth herein. Pursuant to the ILP program’s formal information-sharing policy, PCSO designated Plaintiff and shared PCSO generated information that drove a State Attorney investigation running concurrently with the proceeding affecting his

children. The deliberate operation of parallel criminal and family proceedings against the same parent, fed by the same PCSO information stream and untethered from any individualized finding of present danger, deprived Plaintiff of liberty and of the care and custody of his children without due process. The ILP information-sharing policy was the moving force behind this coordinated deprivation. *Monell*, 436 U.S. 658; *Pembaur*, 475 U.S. at 480–81. Plaintiff seeks compensatory damages.

VI. DAMAGES

49. As a direct and proximate result of Defendant’s unconstitutional conduct, Plaintiff has suffered: (a) the prolonged and continuing loss of his own relationship with, and family ties of his children; (b) the deprivation of his own constitutional right to direct the religious and cultural upbringing of his children; (c) economic harm, including loss of employment, housing, and personal property, and loss of earning capacity, loss of credibility, (d) the period of ILP targeting and its reputational consequences; and (e) severe and ongoing emotional distress.

VII. PRIOR LITIGATION

(THIS ACTION IS NOT BARRED)

50. Plaintiff previously filed a pro se action in this Court, *Davis v. State of Florida*, No. 8:24-cv-02907-KKM-NHA, which was never officially

accepted (possibly intercepted) and dismissed. That action does not bar this Complaint, for the following independent reasons.

51. First, the prior dismissal rested in substantial part on Eleventh Amendment immunity, because the operative prior pleading named the State of Florida as the defendant. A dismissal for lack of subject-matter jurisdiction, including one grounded in Eleventh Amendment immunity, is not an adjudication on the merits and carries no claim-preclusive effect as to the merits of the underlying claims. See *Fed. R. Civ. P. 41(b); Stalley v. Orlando Reg'l Healthcare Sys., Inc.*, 524 F.3d 1229, 1232 (11th Cir. 2008).
52. Second, the operative prior pleading was dismissed for failure to comply with the pleading requirements of Federal Rule of Civil Procedure 8, that is, for pleading form, and the court expressly directed that the defect could be cured by naming proper individual or entity actors and by tying specific facts to each claim. This Complaint cures those defects it names the proper defendant and supports each Count with specific, documented facts.
53. Third, the Defendant here, Chris Nocco, in his official capacity as Sheriff of Pasco County, is a distinct legal entity. A Florida sheriff is an independent constitutional officer, not the State of Florida and not the County, and Defendant was not the defendant in the operative prior pleading. He is not in privity with the State of Florida for purposes of claim preclusion.

54. Fourth, the core theories pleaded here, the documentary ILP/Prolific Offender official-policy theory and PCSO's deliberate defiance of Judge Babb's visitation order were never adjudicated on the merits in the prior action.

VIII. TIMELINESS / TOLLING

55. Section 1983 claims in Florida borrow Florida's four-year personal-injury limitations period. *Fla. Stat. § 95.11(3); Baker v. Gulf & W. Indus., Inc.*, 850 F.2d 1480 (11th Cir. 1988).

56. Continuing violation as Plaintiff's children are continuing to be held from him and PCSO's refusal to honor Judge Babb's visitation order resulting in deprivation of Plaintiff's parental rights, is an ongoing and uninterrupted deprivation that continues through the date of this filing. Under the continuing-violation doctrine, the limitations period runs from the last act in the continuing course of conduct. *Hipp v. Liberty Nat'l Life Ins. Co.*, 252 F.3d 1208, 1221 (11th Cir. 2001).

57. Statutory tolling. Plaintiff was incarcerated from on or about July 30, 2022 through April 12, 2023. *Florida Statute § 95.051(1)(e)* tolls the limitations period during a disability arising from incarceration.

58. Equitable tolling. Plaintiff additionally relies on equitable tolling based on PCSO's repeated denial of public-records requests seeking the video evidence material to these claims.

59. Claims arising from the December 10, 2020 domestic-battery arrest are not barred by *Heck v. Humphrey*, 512 U.S. 477 (1994), because that charge was dismissed on February 11, 2021. Plaintiff's claims for warrantless child removal, defiance of the visitation order, the ILP designation, and deprivation of parental rights do not necessarily imply the invalidity of any outstanding conviction. To the extent any claim could be read to implicate the validity of the 2023 conviction arising from Case No.

512022CF003171CFAXES and 512021CF001143CFAXES Plaintiff

expressly does not seek damages for the fact of that conviction or the period of confinement. That conviction is presently subject to active post-conviction relief and proceedings and/or direct appeal. Plaintiff preserves all related claims in the alternative pending the outcome of those proceedings, and any such claims shall not be deemed waived by their omission from the damages sought herein.

IX. PRAYER FOR RELIEF

WHEREFORE, Plaintiff, Matthew Aaron Davis, respectfully requests that this Court enter judgment against Defendant Chris Nocco, in his official capacity as

Sheriff of Pasco County, Florida as liable and declare that PCSO's warrantless removal of Plaintiffs children on December 10, 2020, without court order, without individualized danger assessment, and without exigent circumstances, directly violated the *Fourth* and *Fourteenth Amendments*.

Declare that PCSO's refusal to honor Judge Babb's visitation order deprived Plaintiff of his constitutional rights as a parent under the *Fourteenth Amendment*.

Declare that the ILP/Prolific Offender Program was unconstitutional as applied to Plaintiff, consistent with Defendant's December 4, 2024 admission;

Order Defendant to certify, within 30 days, that Plaintiff has been removed from all PCSO targeting programs (including any successor program) and that all agencies previously notified of Plaintiff's designation have been notified of its rescission.

Order Defendant to produce, within 30 days, all records and video responsive to the public-records requests.

Order prospective relief requiring PCSO to honor lawfully entered parental-rights orders going forward;

Order declaratory relief deeming predictive policing and AI managed law enforcement systems, practices and policies to be unconstitutional;

Award compensatory damages in an amount to be determined by the jury.

Award attorney's fees and costs under *42 U.S.C. § 1988*,

Grant such other relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Pursuant to Federal Rule of Civil Procedure 38(b), Plaintiff demands a trial by jury on all issues so triable.

Respectfully submitted,

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Dated: June 22, 2026

